

HOUSE No. 5526

The Commonwealth of Massachusetts

PRESENTED BY:

James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Holliston to establish a means-tested senior citizen property tax exemption for debt exclusion construction projects.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>6/18/2026</i>

HOUSE No. 5526

By Representative Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 5526) of James C. Arena-DeRosa (by vote of the town) that the town of Holliston be authorized to establish a means-tested senior citizen property tax exemption for debt exclusion construction projects. Revenue. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Holliston to establish a means-tested senior citizen property tax exemption for debt exclusion construction projects.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. With respect to each qualifying parcel of real property classified as class
2 one, residential in the Town of Holliston, there shall be an exemption from the property tax in an
3 amount equal or less than the actual cost of borrowing (including principal and interest) in any
4 fiscal year, for a specific debt exclusion-funded construction project, to be set annually by the
5 Select Board, as provided in section 3. The exemption shall be applied to the domicile of the
6 taxpayer only. For the purposes of this Act, “parcel” shall mean a unit of real property as defined
7 by the Board of Assessors under the deed for the property and shall include a condominium unit.
8 The exemption provided for in this section shall be in addition to any other exemptions allowed
9 pursuant to the General Laws.

10 SECTION 2. The Board of Assessors of the Town of Holliston may deny an application
11 for exemption if the board finds that the applicant has excessive assets that place the applicant

outside of the intended recipients of the senior exemption established pursuant to this act. Real property shall qualify for the exemption pursuant to Section 1 if all of the following criteria are met:

(i) the qualifying real property is owned and occupied by a person whose prior year's income would make the person eligible for the circuit breaker income tax credit pursuant to subsection (k) of section 6 of chapter 62 of the General Laws;

(ii) the qualifying real property is owned by a single applicant age 65 or older at the close of the previous year or jointly by persons who are 60 years of age or older, provided that not less than one joint owner was age 65 or older at the close of the previous year;

(iii) the qualifying real property is owned and occupied by the applicant or joint applicants as their domicile;

(iv) the applicant, or at least one of the joint applicants, has been domiciled and owned a home in the Town of Holliston for not less than 10 consecutive years before filing an application for the exemption;

(v) the maximum assessed value of the domicile is not greater than the prior year's maximum assessed value for qualification for the circuit breaker income tax credit pursuant to subsection (k) of section 6 of chapter 62 of the General Laws, as adjusted annually by the department of revenue; and

(vi) the Board of Assessors has approved the application for the exemption.

SECTION 3. The Select Board of the town of Holliston shall annually set the exemption amount provided for in section 1; provided, however that the amount of the exemption shall not

33 be less than 10 percent or more than 40 percent of the amount of the circuit breaker income tax
34 credit pursuant to subsection (k) of Section 6 of Chapter 62 of the General Laws for which the
35 applicant qualified in the previous year. The total amount exempted by this act shall be allocated
36 proportionally within the tax levy on all residential taxpayers.

37 SECTION 4. A person who seeks to qualify for the exemption pursuant to section 1 shall,
38 before the deadline established by the Board of Assessors of the Town of Holliston, file an
39 application, on a form to be adopted by the Board of Assessors, with the supporting
40 documentation of the applicant's income and assets as described in the application. The
41 application shall be filed each year for which the applicant seeks the exemption.

42 SECTION 5. No exemption shall be granted under this act until the department of
43 revenue certifies a residential tax rate for the applicable tax year where the total exemption
44 amount is raised by a burden shift within the residential tax levy.

45 SECTION 6. The exemption provided in this act shall expire 3 years after the effective
46 date of this act; provided, however, that the town of Holliston may reauthorize this exemption for
47 additional 3-year intervals by a vote of the legislative body of the town.

48 SECTION 7. This act shall take effect upon its passage.